MORGAN, LEWIS & BOCKIUS LLP
Andrew P. Frederick (SBN 284832)
Aleksandr Markelov (SBN 319235)
1400 Page Mill Road
Palo Alto, CA 94304
Tel: +1.650.843.4000
Fax: +1.650.843.4001
andrew.frederick@morganlewis.com
aleksandr.markelov@morganlewis.com

Attorneys for Defendants
AMAZON.COM SERVICES LLC and
AMAZON LOGISTICS, INC.

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC., AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, LLC, and DOES 1-5,

Defendants.

Case No. 8:22-cv-01727-FWS-JDE

DECLARATION OF ANDREW P. FREDERICK IN SUPPORT OF STIPULATION EXTENDING DEFENDANTS' DEADLINE TO RESPOND TO FIRST AMENDED COMPLAINT AND SETTING BRIEFING SCHEDULE FOR DEFENDANTS' MOTIONS TO DISMISS

Ctrm: 10D
Judge: Hon. Fred W. Slaughter

DECLARATION OF ANDREW P. FREDERICK

I, Andrew P. Frederick, hereby declare:

1. I am an attorney at law, duly licensed to practice in the State of California and admitted to practice before all courts in the State of California and in the Central District of California. I am a partner with the law firm of Morgan, Lewis & Bockius, LLP, counsel of record for Defendants Amazon.com Services, LLC and Amazon Logistics, Inc. (together, "Amazon") in the above-captioned case. I make this declaration in support of the Stipulation Extending Defendants' Deadline to Respond to First Amended Complaint and Setting Briefing Schedule for Defendants' Motions to Dismiss, submitted by Plaintiff and Defendants (collectively, the "Parties").

2. The matters stated herein are based on personal knowledge, and if called as a witness, I could and would testify competently thereto.

3. On September 21, 2022, Plaintiff Miguel Lerma, Jr. ("Plaintiff") filed the original Complaint in the above-entitled action. He subsequently served the Complaint on Amazon and Defendant Accurate Background, LLC ("Accurate") (collectively "Defendants").

4. In the Complaint, Plaintiff asserted the following claims for relief: (1) a claim under California's Megan's Law, Cal. Pen. Code § 290.46 et seq. (against Defendants); (2) a claim under the California Investigative Consumer Reporting Agencies Act, Cal. Civ. Code § 1786.18 (against Accurate); (3) a claim under the Fair Credit Reporting Act, 15 U.S.C. § 1681b(b)(1) (against Accurate); and (4) a claim under California's Unfair Competition Law, Business & Professions Code § 17200 (against Defendants).

5. On October 21, 2022, pursuant to Local Rule 8-3, the Parties stipulated to extending the time for Amazon and Accurate to respond to the Complaint to November 23, 2022.

6. The Parties began meeting and conferring about Defendants' anticipated motions to dismiss the Complaint.

7. On November 15, 2022, Plaintiff filed his First Amended Complaint ("FAC") adding a claim under the California Fair Chance Act, Cal. Gov't Code § 12952 against Amazon, and naming Accurate Background, LLC in the place of Accurate Background, Inc.

8. Amazon's deadline to respond to the FAC is November 29, 2022 and Accurate's deadline to respond to the FAC is December 6, 2022.

9. To allow the Parties additional time to meet and confer regarding Defendants' anticipated motions to dismiss, the Parties agree that Defendants' deadline to respond to the First Amended Complaint should be continued to and including December 15, 2022.

10. The Parties further agree that the following briefing schedule should be set for Defendants' motions to dismiss: (1) December 15, 2022 – deadline for Defendants to file their motions; (2) January 19, 2023 – deadline for Plaintiff to file oppositions to Defendants' motions; (3) February 2, 2023 – deadline for Defendants to file replies in support of their motions; and (4) hearing on Defendants' motions on February 16, 2023 at 10 a.m.

11. The Parties agree that good cause exists for extending Defendants' deadline to respond to the First Amended Complaint and setting the proposed briefing schedule.

I declare under penalty under the laws of the United States of America that the foregoing is true and correct.

Executed on this 21st day of November 2022 at Palo Alto, California.

/s/ Andrew P. Frederick
Andrew P. Frederick